

SENATE BILL 527

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 43,
Chapter 8, relative to pesticides.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 43, Chapter 8, Part 1, is amended by adding the following as a new section:

(a) The manufacturer or seller of a pesticide registered with the commissioner in accordance with § 43-8-104 and with the federal environmental protection agency (EPA) under the federal Insecticide, Fungicide, and Rodenticide Act (FIFRA) (7 U.S.C. §136 et seq.), is not liable in a civil action related to the labeling of the pesticide, including a products liability action alleging a failure to warn under title 29, chapter 28, if the pesticide bore a label approved by the EPA under FIFRA at the time of sale.

(b) This section does not apply if a pesticide is manufactured or sold in violation of this chapter or FIFRA.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.